

Stereo HCJDA 38.
Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.27397-J/2022

Muhammad Adnan alias Chanda vs The State

Murder Reference No.86/2022

The State vs Muhammad Adnan alias Chanda

Criminal Appeal No.27395/2022

Mubashir Hussain vs The State, etc

J U D G M E N T

Date of hearing:	<u>15.05.2025</u>
Appellant by:	Mr. Shahid Azeem, Advocate.
State by:	Ms. Nuzhat Bashir, Deputy Prosecutor General alongwith Mansab, S.I.
Complainant by:	Malik Azhar Abbas Waseer, Advocate with complainant.

FAROOQ HAIDER, J.:- This single judgment will dispose of **Crl. Appeal No.27397-J/2022** filed through jail authorities by Muhammad Adnan alias Chanda (appellant) against his “conviction & sentence”, **Murder Reference No.86/2022** sent by trial court under Section: 374 Cr.P.C. for confirmation of death sentence awarded to the appellant and **Criminal Appeal No. 27395/2022** filed by Mubashar Hussain (complainant) against the acquittal of Muzzamil Raza, as all the matters have arisen out of one and the same judgment dated: 24.03.2022 passed by learned Additional Sessions Judge, Chiniot/trial court.

2. Muhammad Adnan alias Chanda (appellant) along with his co-accused person namely Muzamil Raza was tried in case arising out of F.I.R. No.107, dated 09.03.2020, registered under Sections 302, 34 PPC at Police Station: Chenab Nagar, District Chiniot and after conclusion of trial, the trial Court *vide* impugned judgment dated 24.03.2022, while acquitting co-accused Muzamil Raza has convicted and sentenced the appellant as under:

Under Section 302 (b) PPC: ‘Death’ as ta’zir for committing Qatl-e-amd of Mozaffar Hussain with payment of compensation Rs.2,00,000/- under Section 544-A Cr.P.C. to the legal heirs of deceased and in default thereof to further suffer S.I. for six months.

3. Primarily, Mubashir Hussain (complainant/PW-6) set the machinery of law into motion by recording oral statement (Ex.PH) regarding commission of murder of his brother namely Muzaffar Hussain to Arif Ali Inspector (PW-12) while mentioning therein that he is resident of H.No.314, Mohallah Muhammadi, Tehsil & District Jhang and has set up a shop of Keryana (کریانہ) in his Mohallah whereas his brother Muzaffar Hussain aged about 43-years was residing in Chhani Khichian, Chenab Nagar and he has also established a Keryana (کریانہ) shop there; on 09.03.2020, Mubashar Hussain (complainant/PW-06) came to Chhani Khichian to see his brother Muzaffar Hussain, who was not present at his shop; inmates of the house told that he had gone to Chenab Nagar for fetching keryana/grocery items/articles; when after waiting a long, brother of the complainant did not return, then complainant (PW-6) alongwith Altaf Hussain (PW-7) and Jabar (given up PW) went for searching him; when they reached near Imam Bargha outside village, they saw that Muzaffar Hussain was coming on motorcycle Honda 70/CC bearing No.9580/FDM; at about 1.15 PM, Adnan alias Chanda and Muzamil came on motorcycle Honda CD 70 CC from back side, which was driven by Muzamil whereas Adnan (appellant) carrying/holding pistol .30 bore in his hand was pillion rider/sitting on rear seat, they forcibly stopped Muzaffar Hussain (brother of the complainant), as soon as brother of the complainant alighted from his motorcycle, Muzamil raised ‘lalkara’ to Adnan alias Chanda stating that he be taught a lesson because he (Muzaffar Hussain) had insulted and in their view, Adnan alias Chanda fired successive shots upon brother of the complainant which hit him on right thigh and near right hip/haunch who fell down in injured condition; they (complainant and PWs) ran towards their brother and accused persons escaped towards Qasba Chenab Nagar by brandishing pistol; they (complainant and PWs) took care of Muzaffar Hussain who succumbed to the injuries at the spot.

Motive behind the occurrence was alleged that on 08.03.2020, at the house of sister of the complainant situated in Chiniot City, hot words were exchanged between Muzaffar Hussain and accused Adnan alias Chanda (appellant) and due to that grudge, accused persons committed murder of his brother.

4. After completion of investigation, challan report under Section: 173 Cr.P.C. was submitted against the appellant; he was formally charge sheeted but he pleaded not guilty and claimed trial whereupon prosecution evidence was summoned; after recording of prosecution evidence, he was examined under Section: 342 Cr.P.C. but he refuted the allegations levelled against him; he neither opted to produce defence evidence nor opted to appear as his own witness under Section: 340(2) Cr.P.C.

Trial Court after conclusion of trial while acquitting the co-accused has convicted and sentenced the appellant as mentioned above through impugned judgment dated: 24.03.2022.

5. Learned counsel for the appellant has submitted that conviction recorded and sentence awarded to the appellant through impugned judgment are against the 'law and facts' of the case; ocular account is neither trustworthy nor corroborated by any other independent evidence; prosecution has remained unable to prove its case. Learned counsel for the appellant finally prayed for acquittal of the appellant.

6. Learned Deputy Prosecutor General and learned counsel for the complainant while supporting the impugned judgment submit that prosecution has proved its case beyond shadow of doubt against the appellant through cogent and reliable evidence and prayed for dismissal of appeal.

7. **Arguments heard. Record perused.**

8. It has been noticed that as per case of prosecution, occurrence took place at about 1.15 p.m. on 09.03.2020, distance between place of occurrence and Police Station was just 3.5 KM as per column No.4 of the FIR (Exh.PE), however matter was reported by Mobashar Hussain (complainant/PW-6) through oral statement (Exh.PH) to Arif Ali Inspector (PW-12) at the place of occurrence at 3.50 p.m. on 09.03.2020 and FIR

(Exh.PE) was recorded in the light of said statement at 04:05 p.m. at the Police Station, so when after recording 'Fard Biyan' (Exh.PH) at 3.50 p.m., it was sent to Police Station where at 4.05 p.m., FIR was recorded, then it means that said distance was coverable within just 15 minutes. It is relevant to mention here that as per application (Exh.PH), Muzaffar Hussain (deceased of the case) succumbed to the injuries at the spot and distance from the said place of occurrence to the Police Station was coverable within 15 minutes (as mentioned above), however, matter was not reported immediately to the police within reasonable time rather Arif Ali Inspector (PW-12) came at the place of occurrence and recorded statement of the complainant for registration of the case at 3:50 p.m. and thereafter FIR was registered at 4.05 p.m. as detailed above; furthermore, Arif Ali Inspector (PW-12) and Jafar Ali 795/C (PW-4) clearly stated before the Court that they reached at the place of occurrence at about 2.30 p.m. and relevant portions of their statements are as under:-

“I reached place of occurrence at about 2.30 p.m.”

“I alongwith Arif Ali Inspector reached at the place of occurrence at about 2.30 p.m.

but statement of complainant for registration of case was not recorded at 2.30 p.m. rather at 3.50 p.m. and any explanation in this regard is not available on the record; therefore, matter has not been promptly reported to the police rather with delay and any plausible reason to explain said delay is neither available in statement/Fard Biyan for registration of the case (Exh.PH) nor otherwise has been brought on record, hence, case has been registered with undue and unexplained delay. As per Post-Mortem Examination Report (Exh.PM), dead body was received at dead-house at 8.40 p.m., autopsy was conducted at 8.45 p.m. on 09.03.2020, so post mortem was conducted after about 07 hours and 30 minutes of the occurrence which statedly took place at 1.15 p.m., so post mortem examination was also conducted with delay and reason for the same is that complete documents from police for post mortem examination were received at 8.30 p.m. on 09.03.2020, meaning thereby, that documents for post mortem examination were prepared with delay, and time was consumed for preparing said documents which state of affair further reflects that none of the eye-witnesses including complainant was present at

the time and place of occurrence and time was consumed for inducing, procuring and engaging witnesses as well as for tailoring story for the prosecution after consultation and deliberation which situation further leads to the conclusion that case was even not registered at the stated time rather it was registered with delay and ante-time has been shown in the record, in this regard. So, regarding the occurrence, case was not registered promptly rather with unexplained delay. By now it is well settled that First Information Report (Crime report) is the corner stone and foundational element of the case of prosecution and if same has not been recorded promptly after the occurrence, then superstructure raised on the basis of said FIR in the form of case of prosecution is bound to fall; in this regard, guidance has been sought from the case of “**MUHAMMAD RAFIQUE alias FEEQA versus The STATE**” (2019 SCMR 1068), **MUHAMMAD ADNAN and another versus The STATE and others**” (2021 SCMR 16) and “**GHULAM MUSTAFA versus The STATE**” (2021 SCMR 542).

It is well settled that when there is delay in reporting the incident to the police, then prosecution is under obligation to explain such delay and failure to do that will badly reflect upon the credibility of prosecution version and same is fatal for the case of prosecution. In this regard, guidance has been sought from the case of “**Mst. Asia Bibi versus The STATE and others**” (PLD 2019 Supreme Court 64); relevant portion from paragraph No.29 of said case law is hereby reproduced: -

“There is no cavil to the proposition, however, it is to be noted that in absence of any plausible explanation, this Court has always considered the delay in lodging of FIR to be fatal and casts a suspicion on the prosecution story, extending the benefit of doubt to the accused. It has been held by this Court that a FIR is always treated as a cornerstone of the prosecution case to establish guilt against those involved in a crime; thus, it has a significant role to play. If there is any delay in lodging of a FIR and commencement of investigation, it gives rise to a doubt, which, of course, cannot be extended to anyone else except to the accused...”

9. Ocular account in this case comprises of statement of Mubashar Hussain (complainant/eyewitness/PW-6), Altaf Hussain (cited eyewitness/PW-7) and Jaber Ali (cited eyewitness) who has been given up being unnecessary. Occurrence in this case took place in the area of Chhani Khichian which falls within the area of Police Station Chenab Nagar, District Chiniot whereas Mubashar Hussain (complainant/PW-6) was not resident of

said vicinity rather he was resident of Mohallah Mohammadi, Jhang. Though Altaf Hussain (PW-7) is the resident of village Chhani Khichian but as per site-plan of the place of occurrence (Exh.PG/1), he was having neither any residence nor any shop/business place at, adjacent or around the place of occurrence, therefore, both the aforementioned witnesses are chance witnesses and they were bound to bring on record and prove valid, cogent and acceptable reason to show/establish their presence at the time and place of occurrence. As per case of prosecution, Muzaffar Hussain (now deceased of the case) had gone to Chenab Nagar for bringing grocery items/articles (کریانیے کا سامان) who did not come back for a considerable time, complainant alongwith Altaf Hussain (PW-7) and Jabar Ali (given up PW) came out of the village for his search (پتہ جوئی کے لئے) and reached Imam Bargah, and saw that Muzaffar Hussain was coming on motorcycle where this occurrence took place. It is relevant to mention here that neither any grocery items/articles was shown in the site plan of the place of occurrence (Exh.PG/1) nor any grocery items was taken into possession by police during investigation of the case. In this regard relevant portion of the statement of Mobashar Hussain (complainant/PW-6) is hereby reproduced:-

“At the place of occurrence, no grocery items were laying on the ground.”

As per oral statement/Fard Biyan for registration of the case (Exh.PH), Muzaffar Hussain succumbed to the injuries at the spot. However, it is relevant to mention here that Dr. Muhammad Zohaib (PW-8) who conducted post mortem examination over the dead-body of the deceased, categorically stated that time between injury and death was 30 to 60 minutes, both injuries were on non-vital part, death occurred due to excessive hemorrhage and had the deceased been given proper medical aid timely in between 30 minutes, there would have been chance of his survival. In this regard, relevant portion of his statement is reproduced as under:-

“Time between injury and death was observed to be 30 to 60 minutes. Both the injuries are on non-vital parts and death in my opinion is due to massive hemorrhage. Had the deceased been given proper medical aid in between 30 minutes, there would have been chances of his survival.”

It goes without saying that THQ Lalian was just at a distance of 30 minutes from the place of occurrence and relevant portion from the statement of said PW-6 is as follows: -

“THQ Hospital Lalian is at a distance of thirty minutes from the place of occurrence.”

Now question does arise that as per case of prosecution accused persons had already left the place of occurrence immediately after the occurrence, then if aforementioned witnesses including complainant (who is real brother of the deceased) were present at the time and place of occurrence, then why they (complainant and other cited eye witnesses) did not manage Muzaffar Hussain (deceased)? why they did not try to shift him for providing him medical aid? and why let Muzaffar Hussain remained lying in injured condition from 30 to 60 minutes, resulting into oozing of his blood and causing his death due to hemorrhage i.e. blood loss. This state of affair raises question regarding conduct of said witnesses including the complainant i.e. if they were present at the place of occurrence, then why they remained silent spectator and let Muzaffar Hussain die due to oozing of massive blood for 30 to 60 minutes and it goes without saying that except oral claim, any cogent material/proof is not available on record to show that they made any attempt to shift him to the hospital or providing any medical aid or at least tying his wounds with any piece of cloth. This situation reflects that Muzaffar Hussain remained unattended after receiving injuries till his death. Site-plan of the place of occurrence (Exh.PG/1) reflects that distance between Muzaffar Hussain and assailants was just 03 feet when he received injuries and if length of arm of the assailant and length of barrel of the weapon are deducted from said distance i.e. 03 feet, then there would have been burning at the entry wounds of the deceased but statement of doctor Muhammad Zohaib (PW-8) reveals that only blackening was present at injury No.1 and no blackening burning or tattooing was present at the injury No.2. Needless to add that if complainant (PW-6) being brother of Muzaffar Hussain (deceased of the case) attended his brother after the occurrence and his clothes were stained with blood then why he did not produce his said clothes to the Investigating officer or in Court and in this regard relevant portion of his statement is hereby reproduced:-

“I attend my injured brother in order to bandage the injuries. Part of my body and my clothes were stained with his blood. I did not produce my blood-stained clothes to the I.O. nor had shown to him blood stained part of my body.”

This fact also goes against the prosecution and in this regard guidance has been sought from the case of **“Mst. SUGHRA BEGUM and another versus QAISER PERVEZ AND OTHERS”** (2015 SCMR 1142) and relevant portion from paragraphs No.20 of the case law is reproduced: -

“20. Both the eye-witnesses admitted that their clothes were stained with the blood of the deceased while lifting and handling him but the investigating officer, otherwise showing extraordinary interest in the case, did not take the same into possession because if these were sent to the Chemical Examiner for examination and grouping with that of the blood-stained clothes of the deceased, the same would have provided strongest corroboration to the testimony of the two eye-witnesses. This omission strikes at the roots of the case of the prosecution and bespeaks volumes about the dishonest and false claimed of the said witnesses.”

Further guidance on the subject has also been sought from the cases of **“NADEEM alias KALA versus THE STATE and others”** (2018 SCMR 153) and **“Mst. MIR ZALAI versus GHAZI KHAN and others”** (2020 SCMR 319).

As per usual routine of Altaf Hussain (PW-7), he was not supposed to be present at the place of occurrence because he was used to leave the house early in the morning for earning his livelihood, come back at about 4/4.30 PM and thereafter go to ‘Pakwan Center’ and in this regard relevant portion of his statement is as follows:-

“At early in the morning, I used to leave the house for earning and come back at house about 4.00/4.30 PM and thereafter go to Pakwan center.”

And any material to establish any valid reason to show that why Altaf Hussain (PW-7) did not opt his usual routine on that day and why he was at home, has not come on the record, therefore, both cited eye witnesses i.e. Mobashir Hussain (complainant/PW-6) and Altaf Hussain (PW-7) could not bring any material to establish convincing and acceptable reason to show their presence at the time and scene/place of occurrence. So much so, number, colour, maker and model of motorcycle allegedly used by accused persons in the occurrence was not mentioned in application for registration

of case (Exh.PH) and in this regard relevant portion from statement of complainant (PW-6) is hereby reproduced:-

“We did not provide details with regard to number, colour, maker and model of the motorcycle alleged used by the accused persons.”

In this regard relevant portion of the statement of Mubashir Hussain (eyewitness/PW-6) is also reproduced infra:-

“I had not described detail about number, make, colour and model of the motorcycle of the accused.”

In above scenario, evidence of both aforementioned cited witnesses, who could not explain/establish any valid reason/cause regarding their stated presence at the stated time, at the place of occurrence, is “**suspect**” evidence and cannot be accepted without pinch of salt; guidance in this regard has been sought from the case of “**Mst. SUGHRA BEGUM and another vs. QAISER PERVEZ and others**” (SUPRA) and relevant portion from paragraph No.14 of said case law is hereby reproduced: -

“14. A chance witness, in legal parlance is the one who claims that he was present on the crime spot at the fateful time, albeit, his presence there was a sheer chance as in the ordinary course of business, place of residence and normal course of events, he was not supposed to be present on the spot but at a place where he resides, carries on business or runs day to day life affairs. It is in this context that the testimony of chance witness, ordinarily, is not accepted unless justifiable reasons are shown to establish his presence at the crime scene at the relevant time. In normal course, the presumption under the law would operate about his absence from the crime spot. True that in rare cases, the testimony of chance witness may be relied upon, provided some convincing explanations appealing to prudent mind for his presence on the crime spot are put forth, when the occurrence took place otherwise, his testimony would fall within the category of suspect evidence and cannot be accepted without a pinch of salt.”

Further guidance on the subject has been sought from the case of “**MUHAMMAD ASHRAF alias ACCHU versus The STATE**” (2019 SCMR 652), “**Mst. MIR and another versus The STATE**” (2020 SCMR 1850) and “**SARFRAZ and another versus The STATE**” (2023 SCMR 670).

Moreover, in order to strengthen the case of prosecution, complainant (PW-6) introduced dishonest improvements and relevant portion in the said regard from his statement is hereby reproduced:-

“I had got recorded in my complaint Exh.PH that we tried to shift Mozaffar Hussain to any hospital but he survived for 15/20 minutes and then succumbed to the injuries on the spot. Confronted with Exh.PH where succumbed to the injuries on the spot is recorded only.”

Similarly, Altaf Hussain (PW-7) also introduced improvements and contradictions in his statement before court for strengthening case of the prosecution against the facts and in this regard relevant portion of his statement is as follows:-

I got recorded in my statement u/s 161 Cr.P.C that I and Jabir Ali met with Mubashir Hussain (PW.6) in street. (Confronted with Exh.DB, where meeting in street is not mentioned). I did not get recorded in my statement u/s 161 Cr.P.C that deceased Muzafar Hussain was coming from western side. I got recorded in my statement u/s 161 Cr.P.C before 1.O that both the accused forcibly stopped Muzafar Hussain. (Confronted with Exh.DB where it is not so recorded). I got recorded in my statement u/s 161 Cr.P.C before the I.O. that time of occurrence was at about 01:15 p.m. and descending from their motorcycle, the accused also made Muzafar Hussain descend from his motorcycle (Confronted with Exh.DB where it is not so recorded). I got recorded in my statement u/s 161 Cr.P.C that Muzafar Hussain insulted him yesterday. (Confronted with Exh.DB where it is not so recorded). I got recorded in my statement u/s 161 Cr.P.C that the accused Adnan made fire which hit near knee. (Confronted with Exh.DB where the word knee is not mentioned). I also recorded in my statement u/s 161 Cr.P.C before 1.O we tried to apprehend the accused who while brandishing their weapon and making aerial firing drove away the motorcycle from the venue towards Chenab Nagar we attended Muzafar Hussain to whom we tried to shift any hospital and arranged a vehicle for transportation, when we returned with the vehicle on the spot Muzafar Hussain has succumbed to the injuries. (Confronted with Exh.DB where it is not so recorded). I also recorded in my statement u/s 161 Cr.P.C before L.O the motive part of the occurrence. (Confronted with Exh.DB where motive part is not mentioned).

Further improvements mentioned by him are as under:-

I had got recorded in my statement u/s 161 Cr.P.C that three empties were recovered from the spot. (Confronted with Exh.DB, where three is not mentioned). I had also got recorded in my statement u/s 161 Cr.P.C, number, maker, colour, model of the motorcycle of the deceased. (Confronted with Exh.DB, where such detail of motorcycle of Muzaffar is not recorded). I had also got recorded in my statement u/s 161 Cr.P.C that I and Jabir Ali met Mubashir Hussain complainant in street and we jointly left for search of Muzaffar Hussain brother of complainant. (Confronted with Exh.DB, where it is not recorded). I had also got written that both of them forcibly stopped Muzaffar Hussain. (Confronted with Exh.DB, where it is not recorded). I had also got recorded that descending from their motorcycle, the accused also made Muzaffar Hussain descend from his motorcycle. (Confronted with Exh.DB, where it is not recorded). I had also got recorded that as he had insulted him yesterday. (Confronted with Exh.DB, where it is not

*recorded). I had also stated that we tried to apprehend the accused.
(Confronted with R Exh.DB, where it is not recorded). ”*

By now it is well settled that witnesses who introduce dishonest improvement or omission for strengthening the case, cannot be relied; in this regard, case of **“MUHAMMAD ARIF versus The STATE” (2019 SCMR 631)** and **“KHALID MEHMOOD and another versus The STATE and others” (2021 SCMR 810)** can be advantageously referred.

While taking into consideration all the afore-mentioned reasons collectively, ocular account produced by the prosecution has not been found by us as confidence inspiring or truthful; therefore, same cannot be relied and is hereby discarded.

10. So far as medical evidence is concerned, it is trite law that medical evidence is mere supportive/confirmatory type of evidence; it can tell about locale, nature, magnitude of injury and kind of weapon used for causing injury but it cannot tell about identity of the assailant who caused the injury; therefore, same is also of no help to the prosecution in peculiar facts and circumstances of the case, in this regard, cases of **“SAJJAN SOLANGI versus The STATE” (2019 SCMR 872)** and **“MUHAMMAD RAMZAN versus The State” (2025 SCMR 762)** can be safely referred and relevant portion from latter case law is reproduced:-

“It is by now well settled that medical evidence is a type of supporting evidence, which may confirm the prosecution version with regard to receipt of injury, nature of the injury, kind of weapon used in the occurrence but it would not identify the assailant. ”

11. So far as recovery of pistol (P-8) from the appellant and as per report of Firearm & Toolmarks Examination Report of Punjab Forensic Science Agency, Lahore (Exh.PT), identification of three empty cartridges as having been fired from said pistol are concerned, suffice it to say that Inquest Report of the deceased (Exh.PP) was prepared at the place of occurrence and availability of any empty shells was not mentioned in column No.22 & 33 of the inquest report which makes availability of empty shells at the place of occurrence as doubtful and in this regard, guidance has been sought from the case of **“MST. RUKHSANA BEGUM and others versus SAJJAD and others” (2017 SCMR 596)**; relevant portion whereof is being reproduced: -

“In column No. 23, no crime empty has been shown present there, albeit in the recovery memo and in the site plan, these empties had been shown recovered lying very close to both dead bodies. This deliberate omission, creates reasonable doubts about the recovery.”

(emphasis added)

Furthermore, as per recovery memo (Exh.PQ), pistol (P-8) alongwith three live bullets (P-9/1-3) were taken into possession at the pointing out of the appellant and said recovery memo was attested by Khalid Ali 684/C (PW-10)) and Haq Nawaz 143/C. Khalid Ali 684/C (PW-10) deposed before trial court that accused produced pistol .30 bore alongwith three bullets to Investigating Officer who prepared sealed parcel and took the same into possession vide recovery memo Exh.PQ; in this regard, relevant portion of his statement is hereby reproduced:-

“Accused produced pistol .30 bore alongwith bullets before Ihsan Nawaz S.I./I.O., who prepared sealed parcel and took the same into his possession vide recovery memo Exh.PQ attested by me and Haq Nawaz 143/C.”

So, as per case of prosecution, pistol (P-8) alongwith three live bullets were secured through sealed parcel, however, as per report of Punjab Forensic Science Agency, Lahore (Exh.PT), parcel received in said Agency though contained .30 bore pistol alongwith test fires (TC-1 & TC2) with magazine but availability of three live bullets in the said parcel was not mentioned in the report, meaning thereby, that parcel which was having pistol and three live bullets was not sent to the PFSA, Lahore for comparison/examination rather parcel received over there was simply having pistol and test fires in it, therefore, safe custody of said parcel of the pistol and bullets has been compromised and not established which ultimately makes report of Punjab Forensic Science Agency, Lahore (Exh.PT) as inconclusive, inconsequential and of no helpful to the case of prosecution. Therefore, aforementioned recovery is of no avail to the case of the prosecution.

12. Motive behind occurrence mentioned in application for registration of the case (Exh.PH) was that on 08.03.2020 in the house of sister of complainant which is situated in Chiniot City, an altercation took place/hot words exchanged between Muzaffar (deceased) and Adnan (appellant) and due to said grudge, accused persons by way of making firing with pistol have committed murder, however, said sister who was star

witness in this regard was not produced by the prosecution during trial of the case. Complainant was not present at the time of said quarrel and therefore, not the witness of the said occurrence constituting motive and relevant portion of the statement of complainant (PW-6) is hereby reproduced:-

“On 08.03.2020, quarrel between the deceased and accused Adnan alias Chanda was taken place at the house of my sister and at that time, I was not present there.”

Similarly, Altaf Hussain (PW-7) was also not present at the time of motive incident and he had not witnessed to the same. In this regard, relevant portion of his statement is as follows:-

“On 08.03.2020, I was not at the house of Mst. Robina Bibi. I am not witness of event regarding motive part dated 08.03.2020 of the house of Robina Bibi.”

Therefore, any evidence to establish/prove motive has not been produced by the prosecution and motive remained unproved.

13. As per case of the prosecution, warrant for arrest of appellant Exh.PB (available at page No.123 of the paper book) was issued and his proclamation Exh.PD (available at page No.127 of the paper book) was also issued yet suffice it to say that perusal of warrant of the arrest (Exh.PB) reveals that as per contents of said warrant neither any police official nor any other public servant/person was asked through said warrant to arrest the appellant rather said column is blank. Similarly, perusal of proclamation (Exh.PD) also reflects that it has not been mentioned therein that under which period/how many days and on which date, the appellant had to surrender rather said columns are blank; Exh.PB and Exh.PD are hereby scanned below for ready reference:-

Ex:PB

فوجداری عدلیہ قلم نمبر ۱۰۲ / ۲۰۲۰

وارنٹ گرفتاری

(دیکھو دفعہ ۱۰۲ / ۲۰۲۰)

خلع (فوج) شینڈل ۵ قلم نمبر ۱۰۲ / ۲۰۲۰

بعد الت کھنڈ ۱۰۲ / ۲۰۲۰

نام ۱۰۲ / ۲۰۲۰

برگاہ سی کیٹن ۱۰۲ / ۲۰۲۰

نکاح کیا گیا ہے اس قلم کے ذریعہ آپ کو حکم دیا جاتا ہے کہ کسی کیڑا کیڑا کو قتل نہ کریں

اس باب میں تاکید جائیں۔

FIR No: ۱۰۲ / ۲۰۲۰

Title: ۱۰۲ / ۲۰۲۰

Produced by: ۱۰۲ / ۲۰۲۰

On the: ۱۰۲ / ۲۰۲۰

Nature of document: ۱۰۲ / ۲۰۲۰

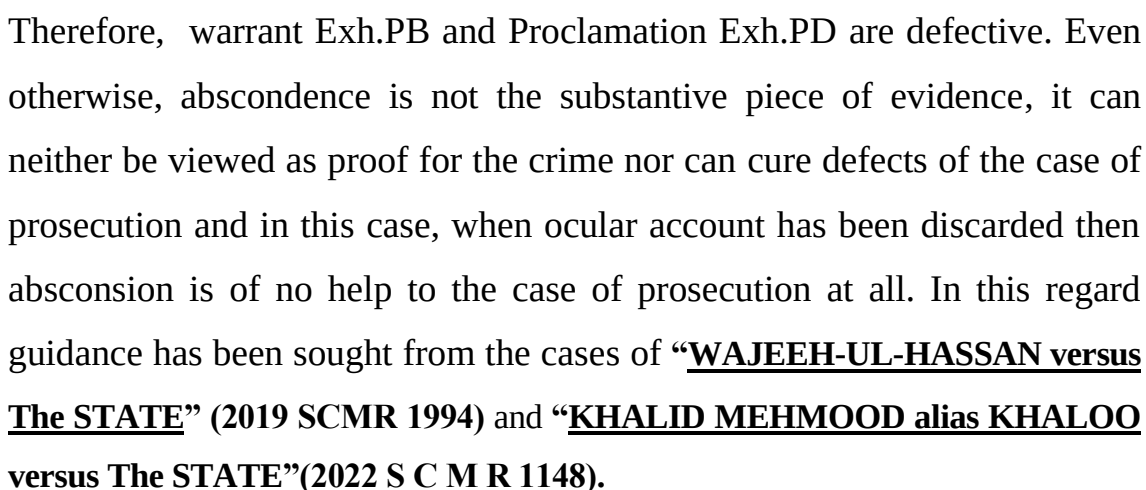
Admitted as Exhibit No: ۱۰۲ / ۲۰۲۰

On the: ۱۰۲ / ۲۰۲۰ day of: ۱۰۲ / ۲۰۲۰

KARIM RASHID KHAN
 Civil Judge 1st Class
 District Court, Faisalabad

۱۰۲ / ۲۰۲۰

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10. Nutshell of the above discussion is that prosecution has been failed to prove its case against the appellant beyond shadow of doubt; therefore, there is no need to discuss defence version.

15. In view of what has been discussed above, **Criminal Appeal No.27397-J/2022** filed by Muhammad Adnan alias Chanda (appellant) is allowed; conviction recorded and sentence awarded to the appellant through impugned judgment dated: 24.03.2022 are hereby set-aside. The appellant is acquitted of the charge, he be released from jail forthwith, if not required in any other case.

16. Resultantly, death sentence awarded to Muhammad Adnan alias Chanda (appellant) is **NOT CONFIRMED** and Murder Reference (M. R. No.86 of 2022) is answered in **NEGATIVE**.

17. So far as acquittal of Muzamil Raza (respondent) recorded by trial court through impugned judgment dated: 24.03.2022 is concerned, suffice it to say that since prosecution has failed to prove its case beyond shadow of doubt (as discussed above), therefore, impugned order of acquittal of respondent recorded by learned trial court through impugned judgment is neither perverse, nor capricious or arbitrary rather it is perfectly in accordance with law, facts and record of the case, hence, same needs no interference by this Court. Even otherwise, after acquittal, accused person has attained double presumption of innocence and courts are always slow to disturb the same and in this regard, reliance can be placed upon the case of **“HAJI PAIO KHAN versus SHER BIAZ and others”** (2009 SCMR 803) and **“MUHAMMAD SHAFI alias KHDDOO versus The State and others”** (2019 SCMR 1045); from, latter case law, relevant portion is reproduced:-

“It is by now well settled that acquittal carries with it double presumption of innocence; it is reversed only when found blatantly perverse, resting upon fringes of impossibility and resulting into miscarriage of justice. It cannot be set aside merely on the possibility of a contra view.”

Thus, Criminal Appeal No.27395/2022 filed by complainant against acquittal of Muzammil Raza is also dismissed.

(Ali Zia Bajwa)
Judge

(Farooq Haider)
Judge

Approved for reporting.

(Ali Zia Bajwa)
Judge

(Farooq Haider)
Judge